

expired. Claimant argued for excusable neglect because he was unsophisticated in legal matters and thought his only remedy was workers' compensation. He also argued that he was hospitalized three times following the accident and spent the remainder of his recuperation period at home, unable to attend to his business affairs. The court found the facts did not show excusable neglect. (*Id.* at 7.)

Here Plaintiff thought her injuries would heal with physical therapy and in that event, she had not considered legal action. It was only when Plaintiff learned that she required more extensive treatment that she looked into taking legal action. In *Harrison* the claimant thought he was limited to workers' compensation, which shows that he was considering legal options for compensation, but mistakenly thought those options were limited. Here, by contrast, Plaintiff opted to wait and see if she would heal without needing extensive medical care and thus, she did not think she would need compensation at the time of her injury. Plaintiff's decision to try physical therapy before considering legal options was reasonably prudent.

The Court finds that Plaintiff's failure to timely submit a government claim was the result of mistake or excusable neglect because Plaintiff did not realize that she should have taken legal action to preserve her rights even if she hoped to heal with physical therapy. The City has not shown any prejudice from the failure to timely submit a government claim. Therefore, the petition from relief from timely filing a government claim is granted.

12. 9:00 AM CASE NUMBER: C25-02532
CASE NAME: ESTATE OF HENRY M. SIEGEL VS. JENNIFER SIEGEL
HEARING ON PETITION IN RE: PETITION TO ENFORCE SETTLEMENT
FILED BY:

TENTATIVE RULING:

The Plaintiff's unopposed Petition to Enforce Settlement is **denied** without prejudice.

Fundamentally, there is no proof that defendant was ever served with a copy of the Summons and Petition in this matter. The court has no personal jurisdiction over the defendant at this time.

In addition, Plaintiff has neglected to show proof of service of a notice of motion, the motion itself, and the papers on which the petition is based, on the defendant. Once the defendant is properly before the court, the court urges Plaintiff to take note of the requirements for the form of a motion contained in CCP § 1010.

13. 9:00 AM CASE NUMBER: MSC19-01794
CASE NAME: MURPHY VS LU
HEARING ON SUMMARY MOTION ON 2ND AMENDED CROSS-COMPLAINT
FILED BY: WEE, BILLY

TENTATIVE RULING:

Before the Court is Cross-Defendants Billy Wee, Eileen Wee, and Wee Yoga, LLC's Motion for Summary Judgment or, in the alternative, Summary Adjudication on Cross-Complainant Jennifer Lu's Second Amended Cross-Complaint.